

End User License Agreement (EULA)

OTT — Ornamental & Title Type

This End User License Agreement (the “Agreement”) is a legal contract between OTT - Ornamental & Title Type (“OTT”) and you, the end-user (“Licensee”). By downloading, installing, or using the font software (“Font Software”), you acknowledge and agree to the terms of this Agreement.

1. Definitions

Font Software:

The digital files containing typeface designs, metadata, and software used to render typefaces.

Licensee:

The individual or entity purchasing the license to use the Font Software.

Authorized Use: The permitted usage as specified in the invoice or purchase confirmation.

2. Grant of License

OTT grants the Licensee a non-exclusive, non-transferable license to use the Font Software under the terms specified in this Agreement.

3. Types of Licenses

A separate license is required for each type of usage.

a - Desktop License

Permits installation on a specified number of devices. (This number of devices is selected at the time of your purchase and will appear on your invoice). It enables use for print designs, poster campaign, packaging, branding materials, static and moving images. Embedding in digital documents (e.g., PDFs) is allowed in a secure, non-editable format.

b - Web License

Allows embedding on specified websites using @font-face CSS technology to style text. Conditions: Licenses are tiered based on unique monthly visitors (UMV) or page views (The monthly traffic of the website using the font must be selected at the time of purchase and will then appear on your invoice). Only WOFF/WOFF2 formats are permitted for web use.

c. Social Media License

The social media license is primarily aimed at brand projects. It allows the use of the font for a communication or advertising campaign on social networks, or as the main typeface for a brand's account on a social platform. This license should be selected instead of the desktop license when the font is used for sponsored images or videos, or to promote a paid product on social media

d. Broadcast/TV License

Grants permission to use fonts in video content for television, streaming platforms, or cinematic releases.

This license allows the use of the font for film and series titles, television commercials, website platform interfaces, and production titles.

Fonts must be securely embedded to prevent unauthorized access or modifications.

This type of license is for single-use; it allows the font to be used for one specific project within this field

e - App License

Permits embedding in a single software or mobile applications. Licenses are tiered based on the number of users of this specific app. Fonts must be securely embedded to prevent user extraction.

f. Brand Logo, Wordmark License

Grants rights to use fonts for creating logos, wordmarks, or brand identity elements that may be trademarked.

The Brand Logo License is the only license that allows vector modification of certain letters in the font. These modifications can be made by a designer, a studio, or by OTT upon request. Please contact us for more information about this.

This license does not allow the entire font to be modified and then used as a 'custom and exclusive typeface.' Such modifications are possible, and more information is available on our Custom Type page.

Purchasing this license will provide you with OTF and TTF files, but it does not allow the sharing of these files under any circumstances. The font file may only be used by the designer responsible for creating the logo. If you wish to share the font file with a third party or use the rest of the font beyond your logo for an identity project, you will also need to purchase a desktop or web license, depending on your project requirements.

g. Textile & Merchandise License

A textile license is a type of license that allows the use of a font to create text-based designs for application on textiles, such as clothing, accessories, or other fabric materials. It permits printing, embroidery, or any other type of application of the font on textile products, integrating it as a visual element.

This license is intended primarily for clothing brands that produce a minimum of 200 pieces using the font visually. For textile use involving the production of fewer than 200 pieces for merchandising purposes, the desktop license is sufficient.

4. Usage Restrictions

The Licensee agrees to the following restrictions:

— Prohibited Uses:

Sharing, reselling, or sublicensing the Font Software.
Converting the Font Software into alternative formats or modifying its source files.
Embedding in editable formats that allow third parties to extract or modify the font.
Redistribution of the Font Software via open-source platforms or font-sharing sites.

— Limited Scope:

Fonts may only be used for the purposes specified in the purchased license.
Extensions or additional uses require separate agreements. Please write us to upgrade your license.

— Security:

Fonts must be secured to prevent unauthorized access or extraction.
Use in environments where font extraction (e.g., from PDFs) is possible requires additional precautions or licensing.

5. Intellectual Property Rights

The Font Software and all associated intellectual property rights are the exclusive property of OTT.

The Licensee does not acquire ownership of the Font Software but only the rights explicitly granted in this Agreement.

Unauthorized use constitutes a breach of this Agreement and may result in legal action.

6. Payment Terms

- All license fees are non-refundable.
- Full payment is required before the Licensee can access the Font Software.
- OTT reserves the right to adjust prices for future licenses or renewals.

7. Warranties and Disclaimers

- OTT warrants it has the right to license the Font Software.
- The Font Software is provided "as is," and OTT disclaims all other warranties, including fitness for a particular purpose.
- OTT is not liable for damages resulting from the use or inability to use the Font Software.

8. Termination

This Agreement may be terminated if the Licensee breaches its terms. Upon termination:

The Licensee must cease all use of the Font Software. All copies of the Font Software must be deleted from the Licensee's systems.

OTT reserves the right to claim damages for unauthorized use.

9. Governing Law and Jurisdiction

This Agreement is governed by the laws of France. Disputes will be resolved in the courts of Paris, France.

Miscellaneous

a. Audit Rights

OTT reserves the right to audit the Licensee's use of the Font Software to ensure compliance with this Agreement. The audit may include a review of devices or servers where the fonts are installed.

b. Amendments

OTT may amend this Agreement, and continued use of the Font Software constitutes acceptance of the revised terms.

c. Limitation of Liability

OTT's total liability under this Agreement is limited to the amount paid by the Licensee for the Font Software. OTT is not liable for indirect or consequential damages.

d. Compliance with GDPR

OTT agrees to process any personal data collected during license purchases in accordance with the General Data Protection Regulation (GDPR).

e. Severability

If any provision of this Agreement is deemed unenforceable, the remaining provisions remain valid and enforceable.